

20CV02394 815-830 East Tremont Associates, G.P. v. Adam White, et al.

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-05-13

Motion: Order to Show Cause Re Preliminary Injunction

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20CV02394

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 05/13/2026 - 10:00

Nature of Proceedings

Order to Show Cause Re Preliminary Injunction

Tentative Ruling

For Plaintiff 815-830 East Tremont Associates, G.P.: Robert B. Forouzandeh, Reicker, Pfau, Pyle & McRoy LLP

For Defendants and Cross Complainants Tom White and Adam White: Self-Represented

RULING

For all reasons stated herein, Tom White and Adam White (the Whites) and anyone acting with them or on their behalf are prohibited from transferring, selling, or disposing of the Type 47 California Department of Alcoholic Beverage Control License Number 503769 (License) or taking any steps to remove it from the ownership of the Whites to anyone other than Plaintiff 815-830 East Tremont Associates, G.P. (Plaintiff).

For all reasons stated herein, until the date the License is transferred or sold to Plaintiff by the terms of the amended judgment in this action, or May 12, 2028, whichever date occurs first, Robert Forouzandeh, in addition to being deemed to be the attorney in fact for the Whites with respect to the signing of any and all documents on behalf of the Whites to sell and transfer the License to Plaintiff, shall also be attorney in fact for the Whites to sign any documents necessary to withdraw any applications to transfer the License to any party other than Plaintiff. There shall be no liability attributed to Mr. Forouzandeh related to his execution of such documents.

For all reasons stated herein, the legal fees incurred by Plaintiff in bringing this application in the amount of \$4,110 shall be reduced from the purchase price that Plaintiff pays to purchase the License from the Whites pursuant to the amended judgment in this action. This deduction shall be in addition to all prior deductions ordered by this Court.

Background

This action was initiated by Plaintiff 815-830 East Tremont Associates, G.P. (Plaintiff) on July 24, 2020, seeking declaratory relief pertaining to a commercial lease between Plaintiff and defendants Tom White and Adam White (collectively, Defendants or the Whites).

On July 24, 2022, Plaintiff filed a motion to enter judgment on a settlement agreement between the parties pursuant to Code of Civil Procedure section 664.6.

On August 17, 2022, the Court entered an amended Judgment (Judgment) in favor of Plaintiff and against Defendants. The Judgment ordered the sale of California Department of Alcoholic Beverage Control License Type 47 Number 503769 (License) from Defendants to Plaintiff in the amount of \$100,000 less certain credits. (Judgment, ¶¶ 2-3.)

Under the Judgment, Defendants' failure to sign any documents necessary to sell, convey and transfer the License to Plaintiff shall result in: (i) the escrow company transferring the License to Plaintiff to the extent permitted by law as though Defendants had signed the necessary documentation; or (ii) Defendants being held in contempt until compliance with the Judgment. (Judgment, ¶ 4.)

On July 16, 2025, the Court entered an order holding Defendants in contempt of Court (Contempt Order). The Contempt Order further required that Defendants pay Plaintiff's fees and costs associated with the contempt proceedings in the amount of \$6,365, and that such fees would be deducted from the purchase price of the License. (Ibid.) The Contempt Order further provided that Robert Forouzandeh (Forouzandeh) is deemed to be the attorney in fact for Defendants, solely with respect to the signing of any and all documents on behalf of Defendants to sell and transfer the License to Plaintiff, and that there shall be no liability attributed to Forouzandeh related to these acts. (Ibid.)

On April 23, 2026, the Court held an ex parte hearing pertaining to Plaintiff's request that the Court enter a temporary restraining order (TRO) and an order to show cause (OSC) why a preliminary injunction should not be entered, restraining Defendants from transferring the License to any party other than Plaintiff, among other relief. Defendant Adam White appeared before the Court and made arguments. The ex parte was granted. On April 24, 2026, the Court entered the TRO and OSC.

This hearing is to scheduled rule on Plaintiff's request that the Court enter a preliminary injunction under the terms of the TRO. Defendants did not file an opposition or response to the OSC.

Analysis:

"Here, the Court reserved its jurisdiction to enforce the judgment, specifically its order of specific performance. 'The jurisdiction of a Court of equity to enforce its decrees is coextensive with its jurisdiction to determine the rights of the parties,

and it has power to enforce its decrees as a necessary incident to its jurisdiction. Except where the decree is self-executing, jurisdiction of the cause continues for this purpose, or leave may be expressly reserved to reinstate the cause for the purpose of enforcing the decree, or to make such further orders as may be necessary.' [Citations.] 'It follows that retention of jurisdiction by the Court for the purpose of interpreting and enforcing its judgment is within the scope of declaratory relief.' " (Stump's Market, Inc. v. Plaza de Santa Fe Limited, LLC (2013) 212 Cal.App.4th 882, 890 (Stumps).)

Based on the declaration of counsel for Plaintiff, it appears there may be one or more imminent or ongoing transactions that will interfere with the execution of the Judgment in this action. (Forouzandeh Decl., ¶¶ 2-4.) Plaintiff asks the Court to enter a "preliminary injunction ... restraining [Tom White and Adam White and anyone acting with them or on their behalf] from transferring, selling, or disposing of the Type 47 California Department of Alcoholic Beverage Control License Number 503769 and/or taking any steps to remove it from the ownership of Tom White and Adam White to anyone other than Plaintiff." (OSC, ¶¶ 1-3.)

Plaintiff has shown there is good cause for the Court to enter an order to ensure the Judgment is effectuated. (See Forouzandeh Decl., ¶¶ 2-4.; Stump's, supra, 212 Cal.App.4th at p. 890.) The Court will vacate the TRO and enter an order that the Whites and anyone acting with them or on their behalf are prohibited from transferring, selling, or disposing of the License, or taking any steps to remove it from the ownership of the Whites to anyone other than Plaintiff.

Forouzandeh, in addition to being deemed to be the attorney in fact for the

Whites with respect to the signing of any and all documents on behalf of the Whites to sell and transfer the License to Plaintiff, shall also be attorney in fact for the Whites to sign any documents necessary to withdraw any applications to transfer the License to any party other than Plaintiff. There shall be no liability attributed to Forouzandeh related to his execution of such documents.

The legal fees incurred by Plaintiff in bringing this Application in the amount of \$4,110 shall be reduced from the purchase price that Plaintiff pays to purchase the License from Defendants. (See Judgment, ¶ 5.) This deduction shall be in addition to all prior deductions ordered by this Court. (See *ibid.*)

The Court notes that its order herein is technically not a preliminary injunction. Rather, this order is entered in accordance with the Court's jurisdiction for the purpose of effectuating the Judgment. (See Stump's, supra, 212 Cal.App.4th at p. 890.)

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

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